

mandatory relief provision was added to section 473.) While some of the cases cited by Plaintiffs do pre-date that timeframe, the above cases do not.

Plaintiffs' Opposition includes discussions related to the discretionary relief prong of section 473. As discussed above, RW Williams did not move under that provision (which appears to be confirmed by the failure to address those arguments in the Reply), so the Court does not address those arguments here.

Based on the above, Defendant RW Williams' Motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-03249

CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU

***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**

FILED BY: POLIKER, AHARON

TENTATIVE RULING:

The unopposed motion is continued on the court's motion to March 27, 2026 at 9:00 a.m., Department 32, for proof of service of a Notice of Motion complying with CCP 1010. Hearing on this motion was previously continued from October 3, 2025 to January 3, 2026 for lack of notice.

On November 14, 2025, Plaintiff/Cross-Defendant Aharon Poliker filed a document purporting to be notice of motion. The pleading was styled, "Plaintiff / Cross-Defendant AHARON POLIKER'S NOTICE IN SUPPORT OF THEIR MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT." The face of the notice contained the date and time and department where the motion would be heard. However, the notice failed to state "the grounds upon which the motion would be made and the papers, if any, upon which it is to be based," as required by CCP 1010. Instead of a code compliant notice, the document erroneously attached a copy of the court's tentative ruling from a hearing held on January 6, 2025.

Given that over six months have passed since the original filing of papers in support of this motion, the court orders the moving party to re-serve all parties with the motion and the papers upon which the motion is based.

5. 9:00 AM CASE NUMBER: C24-03330

CASE NAME: JOHN WISDOM VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Order stipulating to SAC filed 1/15/26.

6. 9:00 AM CASE NUMBER: C25-00506

CASE NAME: ELISA ROXAS VS. SANTOS RODRIGUEZ

HEARING IN RE: MOTION TO COMPEL

FILED BY:

TENTATIVE RULING:

The Defendant's "Motion to Compel" is denied. Defendant served one document with mixed discovery requests twice on the Plaintiffs. That one document ("the Discovery") contained a request for responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admissions.

There are several problems with the Discovery served on the plaintiffs.

First, the Defendant improperly combined different discovery methods into one document. Requests for Admissions must be set forth in a separate document. They may not be combined "in a single document" with interrogatories or any other discovery method. (Cal. Code of Civil Procedure (CCP) § 2033.060(h)) For clarity, each discovery method should be contained in a separate document.

Second, the Discovery lacked mandatory opening paragraphs. For Requests for Admissions, CCP requires that "the first paragraph immediately before the title of the case must show: the identify of the party requesting admissions, the set number, and the identify of the party to whom the requests are directed. CCP §2033.060(a)." Example: "Defendant Santos Rodriguez's First Set of Requests for Admissions to Plaintiff Elisa Roxas."

Next, instead of using the actual form (DISC-001) for Form Interrogatories, Defendant referred to the form by number and listed the number of the interrogatories for which he wanted answers. He did not serve a copy of the DISC-001 on the Plaintiffs. The Plaintiffs received a list of numbers, not any actual text of an interrogatory. The Form Interrogatories are optional form, but a party propounding those interrogatories should use the form, or at the very least, write the words of each interrogatory in their request. Defendant did neither. The Plaintiffs were forced to research the text of the interrogatories in order to respond to them.

Plaintiffs object that Defendant did not specify a timeframe for a response but party is not obligated to do so.

Plaintiffs assert they in fact responded to the Defendant's requests and attached a proof of service showing personal service of their response on October 3, 2025. A motion to compel may be heard even if tardy responses are served after the motion is filed. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th, 390, 410-411.

Defendant sent a letter dated September 15, 2025 notifying the Plaintiffs that their responses were due September 15, 2025, and stating that unless he received full and verified responses without objection within ten (10) calendar days from this letter, I will notify the Court of your non-compliance and file a motion to compel further responses." This letter was delivered to Plaintiffs by Federal Express on September 18, 2025. Defendant does not describe any further attempts to meet and confer regarding the Discovery. Defendant filed this motion September 30, 2025.

Defendant demanded monetary sanctions of \$350.00 but did not give any basis for that figure. Section 2023.040 of the CCP provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Defendant is self-represented. It does not appear any expenses were incurred in the preparation of this motion. He did not submit a declaration setting forth facts supporting his demand for \$350.00 in monetary sanctions.

The motion to compel is denied. The request to have the Requests for Admission deemed admitted is denied because the Request for Admissions was improperly combined with other discovery methods. Plaintiffs served their responses to the interrogatories months ago--thus the court will not compel them to respond at this time. There is no contention that their responses were insufficient. The request for monetary sanctions is denied because there is no factual basis supporting the amount sought.

7. 9:00 AM CASE NUMBER: C25-00782
CASE NAME: AMIN SOBHANI VS. MERCEDEZ-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDEZ-BENZ USA, LLC,
TENTATIVE RULING

Hearing is continued on the Court's motion to May 1, 2026, 9:00 a.m., Dept. 32.

8. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING

Hearing is continued on the Court's motion to January 30, 2026, 9:00 a.m., Dept. 32

9. 9:00 AM CASE NUMBER: C25-01663
CASE NAME: AMBER CLEVELAND VS. DANTE LUCCA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The unopposed motion of Jason G. Eisenberg to be relieved as counsel for Plaintiff Amber Cleveland is granted.